

TENTATIVE RULING

Case: Basarich v. Kim
Case No. CV2021-1195

Hearing Date: May 14, 2026 **Department Eleven** **9:00 a.m.**

The Court does not consider plaintiff Rhonda Basarich's evidentiary objections made in her responsive separate statement because these objections were not "served and filed separately from the other papers...in opposition to the motion." (Cal. Rules of Court, rule 3.1354(b).)

Defendants Department of General Services ("DGS"), Andrew Sturmfels, and Daniel Kim's objections to evidence nos. 19 and 20 are **OVERRULED**. The Court declines to rule on the remaining evidentiary objections because the evidence objected to is not relevant to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)d

Defendants' motion for summary adjudication as to issue nos. 1, 2, and 3 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants argue there is no evidence that DGS subjected plaintiff to an adverse employment action *because of* her national origin, gender, and/or age. (Notice of motion, pp. 2-3.) However, as to these issues, defendants have failed to show that plaintiff cannot establish one or more elements of the first cause of action. (Code Civ. Proc., § 437c, subd. (p)(2); *Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1004 [noting that "direct evidence of intentional discrimination is rare, and that such claims must usually be proved circumstantially"], citation omitted.)

Defendants' motion for summary adjudication as to issue no. 4 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) "If...the motion for summary judgment relies in whole or in part on a showing of nondiscriminatory reasons for the discharge, the employer satisfies its burden as moving party if it presents evidence of such nondiscriminatory reasons that would permit a trier of fact to find, more likely than not, that they were the basis for the termination." (*Scotch, supra*, 173 Cal.App.4th at p. 1005.) "To defeat the motion, the employee then must adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance that intentional discrimination occurred." (*Ibid.*) Defendants have presented evidence that there were legitimate, non-discriminatory reasons for removing and dismissing plaintiff. (UMF 4.13-4.18, 4.20, 4.22, 4.24, 4.31-4.32, 4.34, 4.38, 4.40-4.47; cf. *Silva v. Lucky Stores, Inc.* (1998) 65 Cal.App.4th 256, 264.) However, plaintiff provides evidence raising a triable issue of material fact. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252; see also Cal. Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts and not any facts that are not pertinent to the disposition of the motion."]; UMF 4.47.)

Defendants' motion for summary adjudication as to issue no. 5 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have failed to establish they can obtain summary adjudication as to the first cause of action by asserting that plaintiff cannot show evidence of pretext. (*Ibid.*; see *Scotch, supra*, 173 Cal.App.4th at pp. 1004-1005.)

Defendants' motion for summary adjudication as to issue nos. 6 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have shown that plaintiff cannot establish she engaged in a protected activity. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042 & 1046-1047; UMF 6.1-6.6.) However, plaintiff provides evidence raising a triable issue of material fact. (See

Yanowitz, supra, 36 Cal.4th at p. 1047; UMF 6.4.) While defendants argue that plaintiff's declaration contradicts her sworn deposition testimony, the Court finds that the declaration is not directly in conflict with her deposition testimony. (*Wilkins v. National Broadcasting Co.* (1999) 71 Cal.App.4th 1066, 1082; UMF 6.4.)

Defendants' motion for summary adjudication as to issue nos. 7, 10, and 13 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have failed to establish that plaintiff cannot show the protected disclosure element for this cause of action. (CACI 4601; Gov. Code, §§ 8547.2, 8547.8, subd. (e); *Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1384-1385; UMF 7.3-7.5.)

Defendants' motion for summary adjudication as to issue nos. 8, 11, and 14 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) In their notice of motion, defendants assert that plaintiff cannot establish a causal link between her protected disclosures and the adverse employment action. (Notice of motion, pp. 3-4.) However, defendants fail to make any argument as to these issues in their memorandum of points and authorities. (See Code Civ. Proc., § 437c, subd. (p)(2).)

Defendants' motion for summary adjudication as to issue nos. 9, 12, and 15 is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) Defendants have shown that they had a legitimate, non-retaliatory reason for the adverse employment action, but plaintiff provides evidence raising a triable issue of material fact. (Gov. Code, § 8547.8, subd. (e); *Nazir, supra*, 178 Cal.App.4th at p. 252; see also Cal. Rules of Court, rule 3.1350(d)(2); UMF 9.48, 12.48, & 12.48.)

Defendants' motion for summary judgment is **DENIED**.

Parties are **DIRECTED TO APPEAR** for oral argument.

TENTATIVE RULING

Case: **De La Cruz v. Del Monte Capitol Meat Company, LLC**
Case No. CV2025-1527

Hearing Date: **May 14, 2026** **Department Eleven** **9:00 a.m.**

Del Monte Capitol Meat Company LLC's motion to stay all proceedings pending resolution of appeal is **GRANTED**. (Code Civ. Proc., § 1294, subd. (a).) The Court finds that interests of justice and judicial efficiency are best served by staying all proceedings pending appeal. (See *OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 141; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also *Alpha Media Resort Inv. Cases* (2019) 39 Cal.App.5th 1121, 1134 n.10.)

The case management conference, set for June 30, 2026, is **VACATED**. The Court sets a status conference for **November 16, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.